

IN THE COURT OF I ADDL. SENIOR CIVIL JUDGE & CJM.,
AT: DHARWAD

PRESENT : SMT.INDIRA MAILSWAMY CHETTIYAR,
B.Com.,L.L.B.(Spl.),L.L.M.,
I Addl. Senior Civil Judge & CJM.,
Dharwad.

Dated this, the 5th day of October, 2018.

M.V.C.No.931/2016

PETITIONERS : 1. Smt. Dyamavva,
W/o. Adivappa Madalamatti @
Madalamaddi,
Age: 41 years,
Occ: Household,
R/o. Yattinagudda Village,
Tq:Dist: Dharwad.

2. Adivappa,
S/o. Hanamantappa @ Hanamant
Madalamatti @ Madalamaddi,
Age: 48 years,
Occ: Coolie,
R/o. Yattinagudda Village,
Tq:Dist: Dharwad.

(By Sri. Shivanand. S. Yadavatti, Adv.,)

V/s.

RESPONDENT : The Managing Director & Self Insurance
Fund,
N.W.K.R.T.C.,
Gokul Road,
Hubballi (SIRSI DIVISION).

(Owner of Bus bearing Registration
No.KA-31-F-1310)

(By Sri. V.B. Dhavaleshwar, Adv.,)

JUDGMENT

The Petitioners No.1 and 2 have filed this petition as against the Respondent under Section 166(1) of the Motor Vehicles Act, 1988, praying to award compensation of Rupees 16,00,000/- with interest at the rate of 12% per annum and costs on account of death of Girmallappa S/o. Adivappa Madalamaddi @ Madalamatti.

2. The brief averments of the Petitioners' case are as follows;

a) On the fateful day of accident dated 30.08.2016, the deceased Girmallappa S/o. Adivappa Madalamaddi @ Madalamatti was pedestrian after completion of mesonery work at Sadhanakeri, Dharwad, returning to Yattinagudda Village, at about 7.45 p.m., when he was in order to take Bus was standing on the extreme left side Kachcha Road opposite to New Bus stand, Dharwad, at that time, one offending Bus bearing Registration No.KA-31-F-1310 of the Respondent driven by its driver came from Dharwad City moving towards Belagavi with an excessive speed and also in a rash and negligent manner. The driver of offending Bus due to over speed, lost control over his Bus and dashed and dragged to the deceased pedestrian along with Bus and caused accident. Due to this impact of the accident, the deceased sustained

fatal injuries to the stomach as well as other parts of the body.

b) Soon after the accident, the deceased was shifted to District Hospital, Dharwad for primary treatment. Due to severity of the injuries, he was referred to KIMS Hospital, Hubballi. In spite of best efforts by the KIMS Hospital Doctors, the deceased could not respond for the treatment and succumbed to accidental injuries on 01.09.2016 at 5.45 a.m., in KIMS Hospital, Hubballi. After Post Mortem, the body was handed over to them. Last rituals were done by spending more than Rupees 50,000/- as per Hindu rites and customs. They have spent more than Rupees 20,000/- towards transportation of dead body.

c) Prior to the date of accident, the deceased Girimallappa S/o. Adivappa Madalamaddi @ Madalamatti was hale and healthy and unmarried boy of 24 years age. Their family is poor. He was mesonery mistry and skilled Labour. After taking contracts of construction of building works by appointing labourers doing mesonery work. Out of the said mesonery works, he was earning more than Rupees 20,000/- per month. He was the only son to them and they were entirely depending upon the earnings of the deceased only. The deceased Girimallappa was used to utilize his entire earnings to the family necessities only. But, due to this unexpected death of deceased Girimallappa, they have lost their dependency and struggling for their day today

necessities. On the other hand, they lost their only beloved son's love, affection and security in their future. Therefore, in all prospectus, they are suffering physically, mentally and economically.

d) The said accident in question is caused only due to rash and negligent driving of the driver of Respondent's Bus bearing Registration No.KA-31-F-1310. The Respondent being the Owner-cum-Insurer of the offending Bus, is solely held responsible/liable to pay the compensation to them as claimed. Hence, this petition.

3. In response to the notice, the Respondent has appeared before this Tribunal through his Learned Counsel. But, initially, inspite of giving sufficient opportunities, the Respondent had not filed objections to the main petition. Later, as per the Order dated 28.03.2018 passed on I.A.No.I, the objections filed by the Respondent is taken on file.

4. The Respondent inter-alia denying the entire case of the Petitioners, has further contended as follows;

a) The petition is purporting to be one under Section 166(1) of the M.V. Act, is untenable in law and on facts of the case. The petition is not at all maintainable.

b) This claim petition is filed on 01.12.2016. The summons from this Hon'ble Court was served on him in the

month of December 2017, i.e., after lapse of one year. If this Hon'ble Court comes to the conclusion that, he is liable to pay compensation to the Petitioners, in that event, the interest from filing of the petition till his appearance may kindly be deducted as it is not the negligence on his part.

c) He is not a party to this petition. The Divisional Controller, NWKRTC, Sirsi Division, Sirsi, is the necessary and proper party to this petition.

d) Unless the Petitioners prove their relationship with the deceased, they are not entitled to maintain this petition.

e) The accident has not been caused by the rash and negligent driving of the driver of the Bus bearing Registration No.KA-31-F-1310. On the date of the alleged accident, the N.W.K.R.T.C. Bus bearing Registration No.KA-31-F-1310 driven by its driver, was moving in a moderate speed by observing all the Traffic Rules and Regulations and when it came near the spot of the accident, at that time, the deceased, who was standing by the side of the road, in intoxicated condition, tried to cross the road without seeing the Bus was coming and lost his balance and came in contact with the Bus. Hence, the accident took place not due to the rash and negligent driving of the driver of the Bus bearing Registration No.KA-31-F-1310. Therefore, he is not liable to pay the compensation to the Petitioners as claimed by them.

f) The accident in question is not occurred due to negligence of the driver, but, it caused intoxicated condition of the deceased. The deceased himself is responsible for the said accident, Hence, he is not liable to pay any compensation to the Petitioners.

g) Without admitting the liability, he has paid Rupees 15,000/- to the Petitioners on the spot of the accident. If this Hon'ble Court comes to the conclusion that, he is liable to pay compensation, in that event, the said amount may kindly be deducted in the award amount.

h) The Compensation claimed and as mentioned in the petition, i.e., Rupees 16,00,000/- under all heads is highly excessive and exorbitant and it is arrived at without any rational basis and he is not liable to pay the compensation to the Petitioners.

i) He craves permission to file additional objections, if any, that may arise on the changed circumstances of the case on hand. Hence, prayed to dismiss the petition with costs.

5. Based on the above said pleadings, I have framed the following Issues;

ISSUES

1. Whether the Petitioners prove that, they are the dependents and legal representatives of deceased GIRIMALLAPPA S/o. ADIVEPPA MADALAMADDI @ MADALAMATTI?
2. Whether the Petitioners prove that, the accident occurred due to rash and negligent riding of the Bus bearing Reg.No.KA-31-F-1310 by its driver and GIRIMALLAPPA S/o. ADIVEPPA MADALAMADDI @ MADALAMATTI dies due to the injuries sustained in the accident?
3. Whether the Petitioners are entitled for compensation? If so, how much and from whom?
4. What order or award?

6. In order to prove their case, the Petitioners have examined the Petitioner No.1 as P.W.1 and have placed reliance upon Ex.P.1 to Ex.P.10. On the other hand, Respondent has examined his Driver as R.W.1 and no documents got marked on his behalf.

7. Heard the arguments.

8. My answers to the above said Issues are as follows;

Issue No.1 : Partly in the Affirmative,
Issue No.2 : In the Affirmative,

Issue No.3 : Partly in the Affirmative,

The Petitioners are entitled for compensation of Rupees 14,68,000/- with interest at the rate of 9% p.a. from the date of the petition till the date of payment, from the Respondent.

Issue No.4 : As per the final Order,

for the following;

REASONS

9. **ISSUE NO.1 :-** The P.W.1, who is the Petitioner No.1, has stated in her examination-in-chief that, the Petitioner No.1 is her husband and they have filed the present claim petition as against the Respondent for grant of compensation on account of death of their unmarried son Girmallappa S/o. Adivappa Madalamaddi @ Madalamatti in the motor vehicle accident, which occurred due to rash and negligent driving by the driver of the offending Bus bearing Registration No.KA-31-F-1310 of the Respondent and the said accident was occurred on 30.08.2016 at 7.45 p.m. and due to the accidental injuries, her son died on 01.09.2016 at 5.45 a.m. at KIMS Hospital. The Petitioners have produced Ex.P.1 FIR, Ex.P.2 Complaint, Ex.P.5 Inquest, Ex.P.6 P.M. Report and Ex.P.7 Charge Sheet. On perusal of the contents of Ex.P.1, Ex.P.2 and Ex.P.5 to Ex.P.7, it clearly goes to show

that, Girimallappa S/o. Adivappa Madalamaddi @ Madalamatti died on 01.09.2016 at 5.45 a.m. at KIMS Hospital due to the accidental injuries, which caused to him in the road traffic accident, which was taken place on 30.08.2016 at 7.45 p.m. on Kachcha Road, at New Bus Stand, Dharwad. The Petitioners have also produced Ex.P.8 Aadhaar Card relating to the said deceased, Ex.P.9 Aadhaar Card relating to Petitioner No.1 and Ex.P.10 Aadhaar Card relating to the Petitioner No.2, which clearly disclosed that, the said deceased is a son of the Petitioners, i.e., the Petitioner No.1 is a mother and the Petitioner No.2 is a father of the said deceased. Since the Petitioner No.1 is a mother and the Petitioner No.2 is a father of the said deceased, they are the legal representatives of the said deceased. But, based on the same, it cannot be said and come to the conclusion that, both the Petitioners are the dependents upon the deceased at the time of the accident, as, it is a well settled principle of law that, the father cannot be considered as a dependent upon the unmarried son and admittedly, the deceased is an unmarried son. Further, Ex.P.10 Aadhaar Card relating to the Petitioner No.2 clearly disclosed that, his birth year is 1967 and as on the date of the accident in question, i.e., on 30.08.2016, the Petitioner No.2 was 49 years old. Therefore, the Petitioner No.2 can not be considered as a dependent upon the said deceased. Since the Petitioner No.1 is a mother, she can only be considered as a dependent

upon the said deceased. **Accordingly, I answered Issue No.1 partly in the Affirmative.**

10. **ISSUE NO.2 :-** The P.W.1, who is the Petitioner No.1 has stated in her examination-in-chief that, on the fateful day of the accident dated 30.08.2016, her deceased son Girimallappa S/o. Adivappa Madalamaddi @ Madalamatti was pedestrian after completion of mesonery work at Sadhankeri, Dharwad, returning to Yattinagudda Village and at about 7.45 p.m., when the deceased was in order to take Bus was standing on the extreme left side Kachcha Road, opposite to New Bus Stand, Dharwad, at that point of time, one offending Bus bearing Registration No.KA-31-F-1310 of the Respondent driven by its driver came from Dharwad City moving towards Belgaum with an excessive speed and also in a rash and negligent manner by its driver and due to over speed, he lost control over his speedy Bus reportedly dashed and dragged to the deceased pedestrian along with Bus and caused the accident. She has further stated that, due to this impact, her deceased son sustained fatal injuries to the stomach as well as the other parts of the body and soon after the accident, her deceased son was shifted to District Hospital, Dharwad, for primary treatment and due to severity of the injuries, he was referred to KIMS Hospital, Hubli and inspite of the best efforts by the KIMS Hospital Doctors, he could not respond for the treatment and succumbed to the accidental injuries on 01.09.2016 at 5.45 a.m., at KIMS Hospital and Post Mortem was done at KIMS Hospital. She

has further stated that, the said accident in question is caused only due to rash and negligent driving of driver of the Respondent's Bus bearing Registration No.KA-31-F-1310.

11. No doubt, the P.W.1 is not an eye witness to the accident in question. Further, the Petitioners have not examined any eye witness or independent witness to the accident in question, which caused to their deceased son as alleged. Further, the Petitioners have not produced MLC Register and Police Intimation to show that, in the alleged road traffic accident itself, the deceased had sustained severe grievous injuries on his stomach and all over his body and died due to the said accidental injuries itself during the course of treatment in the Hospital. Further, P.W.1 in her cross-examination has clearly stated that, she has not seen the accident. She has further stated that, the driver of the KSRTC Bus has lodged the complaint as against her deceased son by alleging that, due to the negligence on the part of her son, the said accident was taken place. Further, the Respondent has examined the driver of the offending Bus bearing Registration No.KA-36-F-1310 as R.W.1, who has stated in his examination-in-chief that, as on the date of the alleged accident, he was driving the NWKRTC Bus bearing Registration No.KA-31-F-1310 in a moderate speed by observing all the traffic rules and regulations and when his Bus came near the spot of the accident, at that time, the deceased, who was standing by the side of the road, in

intoxicated condition, tried to cross the road without seeing his Bus was coming and lost his balance and came in contact with the left side of the Bus and hence, the said accident took place not due to the rash and negligent driving on his part. He has further stated that, the accident is caused due to the negligence of the deceased himself.

12. But, based on the said grounds as well as the oral evidence of R.W.1, it cannot be believed and accept the defence taken by the Respondent that, the entire negligence is on the part of the deceased and he was under intoxication at the time of accident and there was no negligence on the part of the R.W.1 in driving the offending Bus bearing Registration No.KA-31-F-1310, as, accept the oral version of R.W.1, the Respondent has not produced any acceptable material documents to consider his defence, but, on the other hand, to consider their case as well as oral evidence of P.W.1, the Petitioners have produced Ex.P.1 FIR, Ex.P.2 Complaint, Ex.P.3 Crime Details Form, Ex.P.4 MVI Report, Ex.P.5 Inquest, Ex.P.6 Post Mortem Report and Ex.P.7 Charge Sheet, which clearly disclosed that, at the time of accident, the deceased was a pedestrian, who was standing on the extreme left side of the Kachcha Road and without observing the deceased, the R.W.1 drove the offending Bus bearing Registration No.KA-31-F-1310 in a negligent manner and dashed to the deceased and dragged the deceased along with the Bus and due to the said impact, the deceased had

sustained fatal injuries on his stomach as well as other parts of the body and immediately, he was shifted to the District Hospital, Dharwad, wherein, first-aid treatment was given and since the deceased had sustained severe grievous injuries on his body, for further treatment, he was referred to KIMS Hospital, Hubli, wherein, he died on 01.09.2016 at 5.45 a.m. due to the said accidental injuries during the course of treatment, which is clear from the following discussion. Further, to show that, the R.W.1 has lodged a complaint as against the deceased in respect of the said accident, which caused to the deceased, no scrap of paper has been produced by the Respondent. Further, the P.W.1 has been clearly denied the suggestions put to her by the Respondent during the course of cross-examination that, at the time of accident, her deceased son was under the influence of alcohol and due to his negligence itself, the said road traffic accident was taken place, when he was crossing the road and he himself has dashed to the Bus. From this, it is made crystal clear that, though the P.W.1 has been cross-examined by the Respondent nothing has been elicited from her mouth to consider his specific defence. Further, the R.W.1 in his cross-examination has clearly stated that, though he went to the Police Station and lodged the complaint, the Police have not received his complaint. If really, there was no negligence on the part of the R.W.1 in the commission of the said road traffic accident and the entire negligence is on the part of the deceased in the commission of the said road traffic accident,

immediately after the accident, the R.W.1 could have definitely lodged a complaint in respect of the accident in question as against the deceased. The non-filing of the complaint immediately after the accident by the R.W.1 clearly implies that, the entire negligence is on his part and hence, he has not seriously take the legal action in respect of the accident in question as against the deceased. Further, the R.W.1 has clearly stated that, he has not questioned the very registration of the criminal case and the very filing of the charge sheet as against him by the Police before any Authority. If really, there was no negligence on the part of the R.W.1 in the commission of the said accident, he could have definitely challenged the very registration of the criminal case as against him by the Police and also charge sheet filed by the Police as against him by preferring an appeal or revision before the Hon'ble competent Court of law.

13. The contents of Ex.P.1 FIR and Ex.P.2 Complaint clearly disclosed that, the Petitioner No.2, who is the father of the deceased, has lodged Ex.P.2 Complaint before the Dharwad Traffic Police as against the R.W.1 by alleging that, on 30.08.2016 at about 7.45 p.m., the R.W.1 was driving the KSRTC Bus bearing Registration No.KA-31-F-1310 negligently near New Central Bus Stand from Dharwad City towards New Central Bus stand on the public road and dashed to his son Girimallappa and due which, the said Girimallappa S/o. Adivappa Madalamaddi @ Madalamatti fell

down and he was dragged and due to the said impact, he had sustained simple and grievous injuries and as such, he prayed to take necessary legal action as against the R.W.1 and based on Ex.P.2 Complaint, the said Police have registered a criminal case as against the R.W.1 for the offences punishable under Section 279, 337 and 338 of IPC under Crime No.164/2016. It is also clear from the contents of Ex.P.1 FIR and Ex.P.2 Complaint that, there is no delay as such in lodging Ex.P.2 Complaint in respect of the accident in question, which caused to the deceased.

14. The contents of Ex.P.3 Crime Details Form and Ex.P.4 MVI Report disclosed that, the offending KSRTC Bus bearing Registration No.KA-31-F-1310 as well as its driver are very much involved in the said road traffic accident and the entire negligence is on the part of the R.W.1 in the commission of the said road traffic accident and if the R.W.1 could have taken a little care while driving the offending KSRTC Bus bearing Registration No.KA-31-F-1310 by observing the deceased, who was standing as a pedestrian on the Kachcha Road of the accidental road, he could have avoided the said road traffic accident and could have saved the valuable life of the deceased and there was no negligence on the part of the deceased in the commission of the said road traffic accident. It is also clearly mentioned in Ex.P.4 MVI Report that, the said accident was not occurred due to any mechanical defects of the said offending KSRTC Bus and

since the Bus dashed to the deceased, no damages caused to the offending Bus and as such, the same has been noted in Ex.P.4 MVI Report.

15. The contents of Ex.P.5 Inquest and Ex.P.6 P.M. Report disclosed that, in the said road traffic accident, the deceased had sustained severe fatal injuries on his stomach and other parts of the body and he died due to the said accidental injuries itself during the course of treatment in the Hospital. It is also clearly mentioned in Ex.P.6 Post Mortem Report that, the death is due to hemorrhage and shocking as a result of injuries sustained. From the said medical evidence, it is clearly proved that, due to the said accidental injuries itself, the deceased died.

16. The contents of Ex.P.7 Charge Sheet disclosed that, since during the course of investigation, it is found that, due to the negligence on the part of the R.W.1 in driving the offending KSRTC Bus bearing Registration No.KA-31-F-1310, which was proceeding from Dharwad City towards New Central Bus Stand on the public road, the accident was taken place on 30.08.2016 at 7.45 p.m., near New Central Bus Stand, P.B. Road, which dashed to the deceased, who was a pedestrian and who was standing by the side of the accidental road and due to the said impact, the deceased had sustained severe fatal injuries and during the course of treatment, he died on 01.09.2016 at 5.45 a.m., at KIMS Hospital, Hubli and

as such, after thorough investigation, the Investigating Officer has filed a charge sheet as against the R.W.1 for the offences punishable under Section 279 and 304(A) of IPC. There is no allegation leveled by the Investigating Officer in Ex.P.7 Charge Sheet as against the deceased about his negligence in the commission of the said road traffic accident.

17. From the above said material evidence, both oral and documentary, it is clearly proved that, the entire negligence is on the part of the R.W.1 in the commission of the said road traffic accident and there was no negligence on the part of the deceased in the commission of the said road traffic accident and the offending KSRTC Bus bearing Registration No.KA-31-F-1310 as well as its driver, i.e., the R.W.1, are very much involved in the said road traffic accident, wherein, the deceased had sustained severe grievous injuries and died on 01.09.2016 at 5.45 a.m., at KIMS Hospital, during the course of treatment. **Accordingly, I answered Issue No.2 in the Affirmative.**

18. **ISSUE NO.3** :- The P.W.1 has stated that, her deceased son was 24 years of age. The Petitioners have produced Ex.P.8 Aadhaar Card relating to the deceased, which disclosed that, his date of birth is 01.06.1991. The date of accident is 30.08.2016. On perusal of the said dates, it appears that, as on the date of accident, the deceased was 26

years old. Hence, the age of the deceased is considered as 26 years at the time of accident.

19. The P.W.1 has stated that, prior to the date of accident, her deceased son was hale and healthy and he was unmarried boy and he was mesonery mestry skilled labour and after taking contracts of construction of building works, he appointed the labourers doing mesonery work and out of said mesonery work, he was earning more than Rupees 20,000/- per month. To consider the avocation and income of the deceased at the time of accident, the Petitioners have not produced any authenticated documents. The same has been clearly admitted by the P.W.1 in her cross-examination. Even the Petitioners have not disclosed the educational qualification of the deceased. Therefore, the said avocation and income as stated by the P.W.1 can not be believed and accept. However, at the time of accident, the deceased was 26 years old and admittedly, he was unmarried and he was having parents and even now a day, a coolie can get minimum wages of Rupees 8000/- p.m., by considering all these material factors, this Tribunal feels that, it is just, proper and necessary to consider the notional income of the deceased is of Rupees 10,000/- p.m. at the time of accident. Hence, the notional income of the deceased is considered as Rupees 10,000/- p.m. at the time of accident.

20. The P.W.1 has stated that, their family is poor and her deceased son was only son to them and they are old aged parents and entirely depending upon his earnings and her

deceased son was used to utilize his entire earnings for their family necessities, but, due to unexpected death of the deceased, they have lost their dependency and struggling for their day today necessities and they have also lost their only beloved son's love and affection and security in their future and therefore, in all prospectus, they are suffering physically, mentally and economically.

21. While answering Issue No.1, this Tribunal has already come to the conclusion that, both the Petitioners are the legal representatives of the deceased and the Petitioner No.1 is only a dependent upon the said deceased. Further, while answering Issue No.2, this Tribunal has already observed and come to the conclusion that, due to the accidental injuries itself, the deceased died on 01.09.2016 at 5.45 a.m. at KIMS Hospital, Hubli, during the course of treatment. Hence, the Petitioners, being the legal representatives and the Petitioner No.1 being the dependent upon the deceased are entitled for compensation under the following heads.

22. It is pertinent to note here that, the Petitioners have utterly failed to prove the definite source of income of the deceased at the time of the accident. Hence, this Tribunal has considered the notional income of the deceased is of Rupees 10,000/- per month at the time of the accident. Further, the deceased was self-employed, i.e., not a permanent job. From this, it is clearly proved that, the

deceased was a self employed person. Further, it is observed in the decision reported in **Special Leave Petition (Civil) No.25590/2014 (National Insurance Company Limited V/s. Pranay Sethi and Others)** that, in case of self-employed or person on fixed salary, the addition should be 40% between the age below 40 years towards future prospects. The deceased was aged 26 years at the time of accident. Hence, towards future prospects 40% of the income has to be added. So, 40% of Rupees 10,000/- comes to Rupees 4,000/-. Therefore, the income of the deceased comes to Rupees 14,000/- p.m. (Rs.10,000/- + 4,000/-).

23. The Petitioner No.1 is considered as a dependent upon the deceased. Therefore, the deceased left behind one dependent. As per the principles laid down in **ILR 2012 KAR 2859 (New India Assurance Co. Ltd., represented by Senior Division Manager V/s. Sri. David. T. and Another)**, whenever there is a sole dependent, deduction of 50% towards personal expenses is proper. Therefore, considering the number of the dependent, i.e., 1, 50% of the income has to be deducted towards personal expenses of the deceased, i.e., Rupees 7,000/- (50% of Rs.14,000/-). Therefore, loss of dependency comes to Rupees 7,000/- (Rs.14,000/- (-) Rs.7,000/-). The multiplier corresponding to the age of the deceased, i.e., 26 years, is 17 as per **Sarala Varma's Case**. Therefore, loss of dependency comes to Rupees 14,28,000/- (Rs.7,000/- x 12 x 17). Therefore, the Petitioner No.1 is

entitled for Rupees 14,28,000/- towards loss of dependency due to death of Girimallappa S/o. Adivappa Madalamaddi @ Madalamatti.

24. As per the principles laid down in the decision reported in **Special Leave Petition (Civil) No.25590/2014 (National Insurance Company Limited V/s. Pranay Sethi and Others)**, loss of estate has to be compensated by awarding Rupees 15,000/- and funeral expenses should be Rupees 15,000/-. As this Tribunal has already observed that, the Petitioner No.2 is a mother and the Petitioner No.2 is a father of the deceased. Hence, the Petitioners are entitled for a sum of Rupees 15,000/- towards loss of estate and Rupees 15,000/- towards funeral expenses.

25. It is just, proper and necessary to award a sum of Rupees 5,000/- towards transportation expenses of the dead body of the deceased and Rupees 20,000/- towards loss of love and affection. Hence, the Petitioners are entitled for Rupees 5,000/- towards transportation expenses of the dead body of the deceased and Rupees 20,000/- towards loss of love and affection.

26. In this way, the Petitioners are entitled for the following amount of compensation:-

Sl. No.	Compensation heads	Compensation amount
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1.	Loss of Dependency	Rs. 14,28,000-00
2.	Loss of Estate	Rs. 15,000-00
3.	Funeral Expenses	Rs. 15,000-00
4.	Expenses of transportation of dead body	Rs. 5,000-00
5.	Loss of Love and Affection	Rs. 20,000-00
	TOTAL	Rs. 14,83,000-00

27. In all, the Petitioners are entitled for total compensation of Rupees 14,83,000/- along with interest at the rate of 9% per annum on the above said sum from the date of petition till payment.

28. It is pertinent to note here that, the P.W.1 in her cross-examination has clearly stated that, after the death of her son, the Respondent has paid a sum of Rupees 15,000/- on the humanitarian ground. The R.W.1 has also clearly stated in his examination-in-chief that, without admitting the liability, their Corporation has paid Rupees 15,000/- to the Petitioners on the spot of the accident. From this, it is clearly proved that, the Petitioners have already received a sum of Rupees 15,000/- from the Respondent in respect of the death of their son, i.e., the deceased. Hence, the said amount of Rupees 15,000/- has to be deducted in the above said compensation amount of Rupees 14,83,000/-. After deduction of the said amount of Rupees 15,000/- in the compensation amount of Rupees 14,83,000/-, the balance

comes to Rupees 14,68,000/-. Therefore, the Petitioners are entitled for a sum of Rupees 14,68,000/- as compensation in the present case in respect of the death of their son Girmallappa S/o. Adivappa Madalamaddi @ Madalamatti.

29. The P.W.1 has stated that, the Respondent being the Owner and Insurer of the said Bus bearing Registration No.KA-36-F-1310 is solely held responsible and liable to pay the compensation to them as claimed in the petition.

30. While answering Issue No.2, this Tribunal has already observed and come to the conclusion that, the entire negligence is on the part of the R.W.1 in the commission of the said road traffic accident and there was no negligence on the part of the deceased in the commission of the said road traffic accident and the offending KSRTC Bus bearing Registration No.KA-31-F-1310 as well as its driver, i.e., the R.W.1, are very much involved in the said road traffic accident, wherein, the deceased had sustained severe grievous injuries and died on 01.09.2016 at 5.45 a.m., at KIMS Hospital, during the course of treatment. The Petitioners in the cause title of the petition have clearly mentioned that, the Respondent is the Owner of the Bus bearing Registration No. KA-31-F-1310. The R.W.1, who is the driver of the offending KSRTC Bus bearing Registration No.KA-31-F-1310 has clearly stated in his examination-in-chief that, at the time of accident, he was driving the offending KSRTC Bus bearing Registration No.KA-31-F-1310. From this material evidence, it is clearly proved that, at the

time of accident, the Respondent was the Owner of the offending KSRTC Bus bearing Registration No.KA-31-F-1310. Since the Respondent is the Owner of the offending KSRTC Bus bearing Registration No.KA-31-F-1310 at the time of accident and he is also the Internal Insurer of the offending KSRTC Bus, the Respondent being the Owner and Internal Insurer of the offending KSRTC Bus bearing Registration No.KA-31-F-1310 is liable to pay the above said compensation and interest to the Petitioners. **Hence, Issue No.3 is answered accordingly.**

31. **ISSUE NO.4** :- For the aforesaid reasons, I proceed to pass the following,

ORDER

The petition filed by the Petitioners under Section 166(1) of the Motor Vehicles Act, 1988, is hereby partly allowed with costs.

The Petitioners are entitled for compensation of Rupees 14,68,000/- with interest at the rate of 9% p.a. from the date of the petition till the date of payment, from the Respondent.

The Respondent shall deposit the said compensation and interest in this Tribunal, within two months from the

date of this Order.

The Petitioners shall share the compensation and interest in the ratio of 70:30.

In the event of deposit of compensation and interest, 50% shares relating to the Petitioners No.1 and 2 shall be released in their favour through account payee cheques, on proper identification.

Remaining 50% shares relating to the Petitioners No.1 and 2 shall be kept in FD in their respective names, in any nationalized Bank of their choice, for a period of 3 years.

Advocate's fee is fixed at Rupees 1,000/-.

Draw award accordingly.

(Dictated to the Stenographer, transcribed and typed by her, corrected and then, pronounced by me in the open Court, on this, the 5th day of October, 2018.)

(INDIRA MAILSWAMY CHETTIYAR)

I Addl. Senior Civil Judge & CJM.,
Dharwad.

ANNEXURE**1. WITNESSES EXAMINED BY THE PETITIONERS :-**

P.W.1 : Smt. Dyamavva W/o. Adivappa
Madalamatti @ Madalamaddi.

2. DOCUMENTS MARKED BY THE PETITIONERS :-

Ex.P.1 : Certified copy of FIR
Ex.P.2 : Certified copy of Complaint
Ex.P.3 : Certified copy of Crime Details Form
Ex.P.4 : Certified copy of MVI Report
Ex.P.5 : Certified copy of Inquest
Ex.P.6 : Certified copy of Post Mortem Report
Ex.P.7 : Certified copy of Charge Sheet
Ex.P.8 : Notarised zerox copy of Aadhaar Card
relating to Girimallappa Madanamatti
Ex.P.9 : Notarised zerox copy of Aadhaar Card
relating to Dyamavva Madalamatti
Ex.P.10 : Notarised zerox copy of Aadhaar Card
relating to Adivappa Madanamaddi

3. WITNESSES EXAMINED BY THE RESPONDENT :-

R.W.1 : Inayatulla S/o. Mohammadismail Sayyed

4. DOCUMENTS MARKED BY THE RESPONDENT :-

- NIL -

(INDIRA MAILSWAMY CHETTIYAR)

I Addl. Senior Civil Judge & CJM.,
Dharwad.

